

IN THE COURT OF
SESSIONS JUDGE, INDORE
MADHYA PRADESH

(CRIMINAL JURISDICTION)

Case No.: SC/472/2023

Court: Sessions Court, Indore

Under Section: IPC §420, §467, §471

Date of Judgment: 08 November 2023

Next Date: —

Trial Commenced: 14 March 2022

IN THE MATTER OF: *State of M.P. v. Suresh Nath Tripathi & Anr.*

JUDGMENT AND ORDER ON SENTENCE

I. PARTIES AND REPRESENTATION

Role	Name	Represented By
State (Complainant)	State of Madhya Pradesh	A.P.P. Shri D.K. Pandey
Accused No. 1	Suresh Nath Tripathi	Adv. Shri R.S. Malhotra
Accused No. 2	Priya Tripathi (wife)	Adv. Shri R.S. Malhotra
Witness (PW-1)	Ramesh Chandra Gupta	N/A — Complainant

Presiding Officer: Shri Manoj Kumar Verma, Additional Sessions Judge, Indore

II. BRIEF FACTS OF THE CASE

The prosecution case, as set out in the charge sheet filed by the Madhya Pradesh Police (Crime No. 114/2021, PS Vijay Nagar, Indore), is briefly as follows:

Shri Ramesh Chandra Gupta (PW-1/Complainant) is the bona fide owner of Plot No. 47-B, Sector 12, Scheme No. 78, Indore, measuring 1,500 sq. ft., purchased by way of a duly registered Sale Deed dated 14th April 1998, executed before the Sub-Registrar, Indore. The said property has been in the continuous possession and enjoyment of the Complainant and his family.

It is alleged that the Accused No. 1, Shri Suresh Nath Tripathi, in conspiracy with his wife, the Accused No. 2, Smt. Priya Tripathi, fabricated a forged Sale Deed dated 02nd January 2021 purportedly showing a sale transaction of the said plot from the Complainant in their favour for a fictitious consideration of

₹18,00,000/-. The said forged sale deed was presented before the Sub-Registrar's office, and upon the strength of this fabricated document, the Accused persons attempted to register the property in their names and subsequently succeeded in obtaining a loan of ₹15,00,000/- from a private financier by mortgaging the said property.

The fraud came to light when the Complainant received a notice from the Sub-Registrar's office for mutation of the property. Upon inquiry, the Complainant discovered the forgery and lodged a First Information Report on 18th March 2021. The Forensic Science Laboratory (FSL), Sagar, on examination of the documents, confirmed in its report (Ex.P-4) that the signatures of the Complainant on the forged sale deed (Ex.P-2) were fabricated and did not match the specimen signatures of the Complainant.

III. CHARGES FRAMED

Charges were framed against both the Accused under the following provisions of the Indian Penal Code, 1860, on 14th March 2022:

- (a) Section 420 IPC — Cheating and dishonestly inducing delivery of property;
- (b) Section 467 IPC — Forgery of a document which purports to be a valuable security;
- (c) Section 471 IPC — Using as genuine a forged document.

The accused persons pleaded not guilty and claimed trial.

IV. SUMMARY OF EVIDENCE

The prosecution examined four witnesses (PW-1 to PW-4) and exhibited four documents (Ex.P-1 to Ex.P-4). The defence examined one witness (DW-1) and exhibited one document (Ex.D-1). The exhibits are summarised hereunder:

Exhibit	Description	Marked By	Relevance
Ex.P-1	Original Sale Deed (1998)	PW-1	Shows original title of complainant
Ex.P-2	Fabricated Sale Deed (2021)	PW-2 (FSL Expert)	Forged document — basis of charge
Ex.P-3	Bank transfer record ₹18 lakh	PW-3 (Bank Mgr.)	Proves pecuniary gain to accused
Ex.P-4	FSL Handwriting Report	PW-2	Confirms signature forgery
Ex.D-1	Alleged purchase receipt (defence)	DW-1	Disputed; not corroborated

The defence contention that Ex.D-1 proves a prior oral agreement for sale is not supported by any credible corroborating evidence. DW-1's testimony is vague, inconsistent on dates, and stands contradicted by the FSL report.

V. ANALYSIS AND REASONS

This Court has carefully examined the oral and documentary evidence on record, the rival contentions of the learned counsels, and the settled principles of law governing the offences charged.

On the charge under Section 467 IPC: The FSL Expert (PW-2) has categorically and unambiguously deposed that the signatures of Shri Ramesh Chandra Gupta on the alleged Sale Deed (Ex.P-2) are forged. The FSL report (Ex.P-4) is a scientific document prepared by a Government expert and this Court finds no reason to disbelieve the same. The original Sale Deed of 1998 (Ex.P-1) conclusively establishes the title of the Complainant. The charge under Section 467 IPC is therefore proved beyond reasonable doubt.

On the charge under Section 471 IPC: Having found that Ex.P-2 is a forged document, the act of the Accused persons in presenting it before the Sub-Registrar and using it to obtain financial benefit constitutes the offence of using a forged document as genuine under Section 471 IPC. This charge is also proved beyond reasonable doubt.

On the charge under Section 420 IPC: The bank transfer records (Ex.P-3) demonstrate that the Accused No. 1 dishonestly obtained ₹15,00,000/- from a financier by mortgaging a property to which he had no title. The elements of deception and dishonest inducement are fully established. The charge under Section 420 IPC is proved.

As regards Accused No. 2, Smt. Priya Tripathi, the evidence shows her active role in executing the forged document and presenting it before authorities. However, no direct evidence has been led to establish that she was the primary architect of the fraud, and hence charges under Section 467 IPC are not proved against her individually, though her complicity in Sections 420 and 471 IPC is established.

VI. VERDICT

Accused No. 1 — Suresh Nath Tripathi is hereby found **GUILTY** of offences punishable under Sections 420, 467, and 471 of the Indian Penal Code, 1860.

Accused No. 2 — Priya Tripathi is hereby found **GUILTY** of offences punishable under Sections 420 and 471 of the Indian Penal Code, 1860, and **ACQUITTED** of the charge under Section 467 IPC.

VII. ORDER ON SENTENCE

Both the Accused persons were heard on the question of sentence. Accused No. 1 is a first-time offender but the offence involves deliberate and premeditated fraud targeting immovable property — the primary asset of a common citizen. The gravity of the offence and its impact on public trust in property records demands adequate deterrence. Accused No. 2's role, while secondary, was knowing and willing.

After due consideration, the following sentences are imposed:

Accused	Offence	Sentence
Accused No. 1 — Suresh Nath Tripathi	IPC §420 (Cheating)	3 years Rigorous Imprisonment + Fine ₹50,000
Accused No. 1 — Suresh Nath Tripathi	IPC §467 (Forgery of deed)	5 years Rigorous Imprisonment + Fine ₹1,00,000
Accused No. 1 — Suresh Nath Tripathi	IPC §471 (Using forged doc)	3 years Rigorous Imprisonment + Fine ₹25,000
Accused No. 2 — Priya Tripathi	IPC §420 (Cheating)	2 years Rigorous Imprisonment + Fine ₹25,000
Accused No. 2 — Priya Tripathi	IPC §471 (Using forged doc)	2 years Rigorous Imprisonment + Fine ₹10,000

The sentences of imprisonment for all offences shall run concurrently. The period already undergone in custody shall be set off against the sentence. In default of payment of fine, the respective accused shall undergo simple imprisonment for three months additionally.

The Accused persons are hereby taken into judicial custody. Bail bonds stand cancelled.

VIII. COMPENSATION TO VICTIM

In exercise of powers under Section 357 of the Code of Criminal Procedure, 1973, this Court directs that out of the fines imposed, an amount of ₹1,00,000/- (Rupees One Lakh) shall be paid as compensation to the Complainant, Shri Ramesh Chandra Gupta, towards the mental anguish and legal expenses suffered by him on account of the fraud perpetrated by the Accused persons.

OPERATIVE PART OF THE JUDGMENT

Resultantly, Sessions Case No. SC/472/2023 is hereby decided. The Accused persons are convicted and sentenced as hereinabove. The forged Sale Deed (Ex.P-2) is hereby ordered to be destroyed and shall have no legal effect. The original Sale Deed (Ex.P-1) shall be returned to the Complainant after the prescribed period of limitation for appeal. A copy of this judgment shall be supplied to the Accused free of cost as required under Section 363 CrPC.

(Manoj Kumar Verma)
Additional Sessions Judge
Sessions Court, Indore (M.P.)
Dated: 08 November 2023

Dictated, pronounced and signed in open court on 08th November 2023.
Certified copy issued — Sheristedar, Sessions Court, Indore